

4. REYES, ET AL. v. DEPT. OF TRANSPORTATION, SC20200027**Plaintiffs' Motion to Tax Costs**

On January 15, 2026, defendant State of California Department of Transportation (“defendant”) filed a Memorandum of Costs, claiming a total of \$66,325.48.

On February 2, 2026, plaintiffs Maria Reyes and Fernando Gonzalez (collectively, “plaintiffs”) jointly filed the instant motion to tax costs in the amount of \$33,266.39. (Cal. Rules of Court, rule 3.1700, subd. (b).) On March 9, 2026, defendant filed a timely opposition. On March 13, 2026, plaintiffs filed a timely reply.

1. Background

This action was filed on February 20, 2020. On July 12, 2023, both defendants – Nicholas Hudspeth and the Department of Transportation – made a settlement offer under Code of Civil Procedure section 998. Plaintiffs did not accept the offer.

On December 31, 2025, the court granted defendants’ motion to dismiss the entire action with prejudice pursuant to Code of Civil Procedure section 583.310.

Defendant’s memorandum of costs requests a total amount of \$66,325.48, as follows: (1) \$975.00 for filing and motion fees;¹ (2) \$150.00 for jury fees; (3) \$12,034.50 for deposition costs; (4) \$22,193.79 for service of process; (5) \$5,200.00 for witness fees;² (6) \$4,827.29 for court reporter fees as established by statute; (7) \$6,482.62 for

¹ Defendant seeks reimbursement to the court for fees waived by the court under Government Code section 6103.5, due to the fact that defendant is a public agency. Government Code section 6103.5 provides that the clerk entering judgment shall include as a part of the judgment the amount of the filing fee, and the amount of the fee for the service of process or notices which would have been paid but for Government Code section 6103, designating it as such. (Gov. Code, § 6103.5, subd. (a).) “When an amount equal to the clerk’s fees and the fees for service of process and notices is collected upon a judgment pursuant to [Government Code section 6103.5,] subdivision (a), those amounts shall be due and payable to the clerk and the serving officer respectively.” (Gov. Code, § 6103.5, subd. (b).)

² Defendant’s opposition brief indicates that defendant is withdrawing its request for witness fees in the amount of \$5,200.00. Therefore, with respect to witness fees only, the court denies plaintiffs’ motion as moot.

models, enlargements, and photocopies of exhibits; (8) \$4,003.28 for electronic filing or service fees; and (9) \$10,459.00 for “other.”

2. Legal Principles

A prevailing party is entitled to recover its costs. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5 creates three categories of costs—allowed, prohibited, and discretionary. (*Rozanova v. Uribe* (2021) 68 Cal.App.5th 392, 402 [question presented was which category covered the claimed item].) First, Code of Civil Procedure section 1033.5, subdivision (a) lists the items specifically allowed as recoverable costs. Second, Code of Civil Procedure section 1033.5, subdivision (b) lists items that “are not allowable as costs, except when expressly authorized by law[.]” (*Ibid.*) Third, Code of Civil Procedure section 1033.5, subdivision (c)(4) provides that an item neither specifically allowable under subdivision (a) nor explicitly prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (*Id.*, subd. (c)(4).) In particular, the item must be (1) “incurred, whether or not paid;” (2) “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation;” and (3) “reasonable in amount.” (*Id.*, subd. (c).)

“ ‘In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. “If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.” [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.’ ” (*Rozanova, supra*, 68 Cal.App.5th at p. 399; see *Berkeley Cement, Inc. v. Regents of University of Cal.* (2019) 30 Cal.App.5th 1133, 1139.)

3. Discussion

The parties do not dispute that defendant is a “prevailing party” under Code of Civil Procedure section 1032.

3.1. Deposition Videos

Plaintiffs argue that defendant's claimed costs for videorecording³ each plaintiff's deposition were not reasonably necessary to the conduct of litigation and/or the amounts of costs claimed are unreasonable. Plaintiffs point out that the videotaped deposition testimony was not presented to the trier of fact and was "merely convenient or beneficial" to defendant's trial preparation. (Pltfs.' Mem. of Points & Authorities ("MP&A") at 11:23–28.)

The court rejects plaintiffs' arguments. First, Code of Civil Procedure section 1033.5, subdivision (a)(3)(A) expressly allows costs for videorecording necessary depositions. The record does not show that the videorecording of plaintiffs' depositions in this instance was unnecessary or unreasonable. Plaintiffs both claim personal injury. Arguably, they were the most important witnesses in plaintiffs' case. By videorecording their depositions, defendant was able to capture their demeanor – which the jury could use in assessing their credibility if any portion of the videos were played for the jury at trial – and better prepare for cross-examination at trial. The court denies plaintiffs' motion to tax the videorecording costs.

3.2. Deposition Cancellation/Non-Appearance Fees

Plaintiffs' motion challenges the cancellation/non-appearance fees for the depositions of Priscilla Prieto (plaintiffs' adult child who was present in the vehicle at the

³ Plaintiffs challenge the costs to videorecord their depositions only; plaintiffs do not challenge the other costs associated with their depositions (i.e., transcripts, interpreting services). Plaintiffs' notice of motion indicates plaintiffs seek to tax costs in the amount of \$262.50 for videotaping plaintiff Reyes's deposition and \$350.00 for videotaping plaintiff Gonzalez's deposition. Plaintiffs' memorandum of points and authorities, however, indicates plaintiffs seek to tax costs in the amount of \$543.72 for videotaping plaintiff Reyes's deposition and \$725.00 for videotaping plaintiff Gonzalez's deposition. Because, as discussed below, the court's tentative ruling is to deny plaintiffs' motion to tax costs for video-taping plaintiffs' depositions, the court need not address the discrepancy in amounts claimed in plaintiffs' notice of motion versus their memorandum of points and authorities.

time of the incident and resided with plaintiffs throughout the pendency of litigation) and Michael Lyons, M.D. (plaintiffs' medical provider). Plaintiffs allege the claimed costs were not reasonably necessary to the conduct of the litigation and, at most, "merely served [defendant's] convenience." (Mtn. at 2:23–28.) The claimed non-appearance fee for Ms. Prieto is \$547.50 and the claimed cancellation fee for Dr. Lyons is \$941.75.

A late cancellation fee paid to a reporter may be recovered as an expense related to taking a deposition. (*Garcia v. Tempur-Pedic North America, LLC* (2024) 98 Cal.App.5th 819, 825.) Here, the court concludes that defendant's depositions of these fact witnesses were reasonably necessary to the conduct of litigation. Thus, the late cancellation fee for their cancellation and/or nonappearance is allowable under Code of Civil Procedure section 1033.5, subdivision (a)(3). On its face, the fees are not unreasonable in amount. Plaintiffs' motion to tax these costs is denied.

3.3. Service Fees for Sending Medical Records to Defendant's Expert

Plaintiffs object to defendant's claimed cost of \$95.00 for serving medical records upon its expert on the ground that this cost was not reasonably necessary to the conduct of litigation and, at most, it merely served defendant's convenience. Additionally, plaintiffs claim the amount is unreasonable. (Mtn. at 3:13–18.) Service fees are expressly allowed under Code of Civil Procedure section 1033.5, subdivision (a)(4). On its face, \$95.00 is not an unreasonable amount. Therefore, the court denies plaintiffs' motion to tax \$95.00.

3.4. Witness Fees

As previously mentioned, defendant's opposition indicates defendant is withdrawing its request for witness fees. (Opp. at 5:28–6:4.) Therefore, with respect to the claimed witness fees only, the court denies plaintiffs' motion as moot.

///

///

///

3.5. Court Reporter Fees

Plaintiffs object to court reporter fees in the sum of \$4,827.29 related to hearings in this case on the following dates: (1) April 1, 2025; (2) April 11, 2025; (3) August 27, 2025; (4) October 24, 2025; (5) December 5, 2025; and (6) December 12, 2025. Plaintiffs assert the costs are not allowable because the court did not order any transcript of said hearings. (Code Civ. Proc., § 1033.5, subd. (a)(9) [allowable costs include “[t]ranscripts of court proceedings ordered by the court”].)

The court notes, however, that the claimed costs are not “transcript fees” but rather “court reporter fees.” Code of Civil Procedure section 1033.5, subdivision (a)(11) provides that court reporter fees are allowable “as established by statute.” (*Ibid.*) Pursuant to Code of Civil Procedure section 269, an official reporter “shall take down in shorthand testimony, objections made, rulings of the court, exceptions taken, ... and statements and remarks made and oral instructions given by the judge or other judicial officer ... (1) [i]n a civil case, on the order of the court or at the request of a party.” (Code Civ. Proc., § 269, subd. (a)(1).)

The court finds that the claimed court reporter fees are allowable. Plaintiffs’ motion to tax these costs is denied.

3.6. Models, Enlargements, and Photocopies of Exhibits

The trial court may award costs under Code of Civil Procedure section 1033.5, subdivision (a)(13) for “[m]odels, the enlargements of exhibits and photocopies of exhibits ..., *if they were reasonably helpful to aid the trier of fact.*” (*Ibid.* [emphasis added].) Here, the exhibits were not presented to the trier of fact; therefore, the court finds they are not allowable costs under Code of Civil Procedure section 1033.5, subdivision (a)(13).

Defendant argues, however, that these costs are recoverable under Code of Civil Procedure section 998. (Opp. at 8:9–15.) Code of Civil Procedure section 998 provides in pertinent part: “If an offer made by a defendant is not accepted and the plaintiff fails to

obtain a more favorable judgment or award, ... the court ... may require the plaintiff to pay a reasonable sum to cover postoffer costs of *the services of expert witnesses*, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant.” (Code Civ. Proc., § 998, subd. (c)(1) [emphasis added].) The court finds that the claimed costs do not relate to the services of any expert witness. Therefore, the court grants plaintiffs’ motion to tax \$6,482.62 for models, enlargements, and photocopies of exhibits.

3.7. Electronic Filing and Service Fees

Plaintiffs argue that defendant’s claimed electronic filing and service fees are not recoverable because this court did not mandate e-filing from February 20, 2020, through June 30, 2025. (Pltfs.’ MP&A at 15:24–16:2.) Code of Civil Procedure section 1033.5, subdivision (a)(14) allows a prevailing party to recover “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (*Ibid.*) While not expressly allowed under this subdivision, the court exercises its discretion under Code of Civil Procedure section 1033.5, subdivision (c)(4) to allow the claimed fees. As defendant points out, these fees were incurred during the period of COVID-19. Plaintiffs’ motion to tax these costs is denied.

3.8. Sanctions

Paragraph 15 (“Other”) of defendant’s memorandum of costs identifies \$10,459.00, the total amount of monetary sanctions imposed upon plaintiffs by this court. Code of Civil Procedure section 1033.5 does not expressly allow or prohibit previously-imposed sanctions as a recoverable cost. Because the previous sanction orders are valid orders of the court, the court declines to allow said costs under Code of Civil Procedure section 1033.5, subdivision (c)(4). Therefore, plaintiffs’ motion to tax these costs is granted.

3.9. Service Fees for Serving Papers upon Plaintiffs' Counsel

Plaintiffs object to the claimed \$459.20 of service fees on the grounds that the fees were not reasonably necessary to the conduct of the litigation and, at most, merely served defendant's convenience. (Mtn. at 7:1–5.) Further, plaintiffs claim that the amount is unreasonable. (Mtn. at 7:5.) Code of Civil Procedure section 1033.5, subdivision (a)(4)(B) allows for service fees by a registered process server. On its face, the amount of service fees are not unreasonable. Therefore, plaintiffs' motion to tax these costs is denied.

TENTATIVE RULING # 4: THE MOTION TO TAX COSTS IS GRANTED IN PART AND DENIED IN PART. THE COURT GRANTS PLAINTIFFS' MOTION TO TAX A TOTAL OF \$16,941.62 CLAIMED BY DEFENDANT DEPARTMENT OF TRANSPORTATION, INCLUDING:

(1) \$6,482.62 FOR MODELS, ENLARGEMENTS, AND PHOTOCOPIES OF EXHIBITS; AND

(2) \$10,459.00 IN MONETARY SANCTIONS THAT WERE PREVIOUSLY ORDERED BY THE COURT. ACCORDINGLY, THE CLERK IS DIRECTED TO ENTER JUDGMENT OF COSTS IN FAVOR OF DEFENDANT DEPARTMENT OF TRANSPORTATION AND AGAINST BOTH PLAINTIFFS IN THE TOTAL AMOUNT OF \$49,383.86.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.